

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

-----X
MICHEAL WALKER,

Plaintiff,

AMENDED COMPLAINT

-Against-

**JURY TRIAL DEMANDED
17-CV-5202 (PCK)(LB)**

THE CITY OF NEW YORK, ("CITY");
TAIMUR RAJA #19639; DAVID VAZQUEZ #20393;
ESTHARLIN LOPEZ# 16513; KLYE BROWN#16513;
JOHN AND JANES DOES "1" thru "20"
Sued in their individual and official capacities.

Defendants.
-----X

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

★ NOV 13 2017 ★

BROOKLYN OFFICE

1. This action is brought to end a pattern and practice of unconstitutional, discriminatory and inhumane treatment and deliberate indifference to arrested handicapped prisoners within the 70th precinct, which such treatment was videotaped.

2. Plaintiff Michael Walker was subjected to a brutal assault during his arrest.

3. Plaintiff is now "legally Blind" in a New York State Sensorial Disability Unit, "SDU" at Sullivan Correctional Facility at 325 Riverside Drive, P.O. Box 116, Fallsburg, New York 12733-0116 resulting from the assault he suffered at the hands of the above mentioned Police Officers.

4. Plaintiff seeks (i) Compensatory damages for physical, psychological and Emotional distress, and other financial loss caused by the illegal actions of the defendants (ii) Punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; and (iii) such other and further relief, including cost and attorney's fees, as this Court deems equitable and just.

JURISDICTION

5. This action is brought pursuant to 42 U.S.C. §§ 1983, 1981, and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution and the constitutional, statutory, and common laws of the State of New York.

6. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1342 (3) and (4), as this action redress for the violation of Plaintiffs constitutional and civil rights.

7. Plaintiff further invokes this Court supplemental jurisdiction, pursuant to 28 U.S.C. 1367(a), over any and all constitutional and state law claims that are apart of the same case or controversy.

VENUE

8. Venue is properly laid in the United States district Court for the Eastern District of New York under 28 U.S.C. 1391(b)(2), this being the District which the claim arose.

NOTICE OF CLAIM

9. Plaintiff filed a Notice of Claim with the City of New York on or about March 22nd, 2017 within the 90 days of the events complained of herein, and more than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

10. Plaintiff demands a trial by jury on each and every one of his claims as pled herein pursuant to Fed.R. Civ. P. 38 (b).

PARTIES

11. At all times relevant hereto THE CITY OF NEW YORK, (hereinafter "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs,

and controls the New York City Police Department, which employs the other named Defendants.

12. At all times relevant to this action, Defendants Police Officer Taimur Raja, Police Officer David Vasquez, Police Officer Esthalin Lopez, and Kyle Brown, are and were police officers employed by the New York City Police Department, (hereinafter “NYPD”) and acting under color of state law, they are being sued both in their individual and official capacities.

13. At all times relevant hereto and in all their actions described herein, the Defendants Officer Taimur Raja, Officer David Vazquez, Officer Esthalin Lopez, Officer Kyle Brown and Officers John and Jane Does “1” thru “20,” were acting under the color of statutes, ordinances, regulations, policies, customs and usages of the “NYPD” and “NYC” within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and Police officers.

14. “NYC” was responsible for the hiring, training, supervision, discipline, retention and promotion of the Police Officers, sergeants and/or employees of the “NYPD” they are being sued in their individual and official capacities.

FACTS

15. On January 8, 2017 Plaintiff was laying on the ground face down handcuffed behind his back at 1058 Coney Island Avenue in Brooklyn New York when he was repeatedly punched about the head and face by police Officers with closed fist, as a result of his arrest, Mr. Walker suffered various physical injuries, including abrasions, bruises, and contusions about his body and a broken finger with substantial pain.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS
(General Allegations, Fourth, Eighth, Fifth and Fourteenth Amendments)

16. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

17. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of State law.

18. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges, and immunities guaranteed of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States, including but not limited to:

- a. The right to be free from abuses or process.
- b. The right to equal protection, privileges and immunities under the laws.
- c. All of the aforementioned acts were carried out by the aforementioned individual Defendants in their capacities as Police Officers, with the entire actual and/or apparent authority attendant thereto.

19. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as Police Officers, pursuant to the customs, usages, practices, procedures, and rules of "NYC" and the "NYPD" all under the supervision of ranking officers of said department.

20. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constitutes a custom, practices, or rules of his/her respective municipality/authority which is forbidden by the constitution of the United States.

21. By these actions, these Defendants have deprived plaintiff of rights secured by the Fourth, Eighth, Fifth, and Fourteenth Amendments to the United States Constitution and jointly liable.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER § 42 U.S.C. 1983

22. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

23. The degree of force were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

24. As a result of the excessive force and brutality, plaintiff sustained multiple injuries to his body and endured serious emotional and psychological distress.

25. All of the aforementioned acts of the Defendants constituted excessive force under the laws of the State of New York and the United States Constitution and the Defendants are liable for said damage, pursuant to § 28 U.S.C. 1367, this Court has pendant jurisdiction to hear and adjudicate such claims that pertain to State law.

THIRD CLAIM FOR RELIEF
MUNICIPAL LIABILITY

26. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

27. The acts complained of herein were carried out by the Defendants Officers in their capacities as Police Officers, employees, and officials pursuant to the customs, policies, usages, practices, and rules of “NYC” and the “NYPD” all under the supervisory of ranking Officers of said department.

28. It was policy, and/or custom of “NYC” and “NYPD” to inadequately and improperly train and supervise its Police Officers, including the Defendant Officers, thereby failing to adequately discourage further constitutional violations on the part of its Police Officers.

29. It was policy and/or custom of “NYC” and “NYPD” to inadequately and improperly investigate complaints of misconduct against Police Officers filed by “NYC”, including, but not limited to the following incidents; false arrest, false imprisonment, malicious prosecution, assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

30. The foregoing customs, policies, usages, practices, procedures, and rules of “NYC” and the “NYPD” were the proximate of the Constitutional violations suffered by plaintiff as alleged herein.

31. The foregoing customs, policies, usages, practices, procedures, and rules of the “NYC” and, “NYPD” were the moving force behind the constitutional violations by plaintiff as alleged herein.

32. As a result of the above described policies and customs, police officers of “NYPD” including the defendants officers, believed that their actions would be monitored by supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

33. Defendants collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

34. Defendants collectively and individually, while under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinates' Officers and were directly responsible for the violations of plaintiff's constitutional rights.

35. Defendants "NYC" as municipal policy makers in the training and supervision of defendant's police Officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom of liberty without Due process of law in violation of the Fourth, Eighth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983, and the Constitution and laws of the State of New York.

36. All of the foregoing acts by Defendants deprived plaintiff of Federally protected rights, including, but not limited to the right;

- a. To be protected against violations of his civil and constitutional rights;
- b. Not to have cruel and unusual punishment imposed upon him and;
- c. To receive equal protection under the law.

**FOURTH CLAIM FOR RELIEF
FAILURE TO INTERVENE
UNDER THE FOURTH AMENDMENT § 42 U.S.C. 1983**

37. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

38. Members of the "NYPD" have affirmative duty to assess the constitutional of interactions between their fellow members of the police department to intervene where they observe another member of the police department employing unjustified and excessive force against a civilian.

39. The defendant's Officers were present on January 8th, 2017 at 1058 Coney Island Avenue in Brooklyn New York where plaintiff was arrested

a. Use unlawful force against plaintiff, including pushing plaintiff face into the ground and rapidly and repeatedly hitting him about the face and head while he was handcuffed behind his back and not resisting arrest.

40. Defendants violated plaintiff constitutional rights by failing to intervene in the illegal beating of plaintiff, and Officers excessive use of force that resulted in injury and damages.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands Judgement and prays for the following relief, jointly and severally, against Defendants;

1. Special and compensatory damages in the amount of FIVE HUNDRED THOUSAND DOLLARS, (\$500, 000.00); and

2. Punitive damages in the amount of FIVE HUNDRED THOUSAND DOLLARS, (\$500,000.00) DOLLARS); and

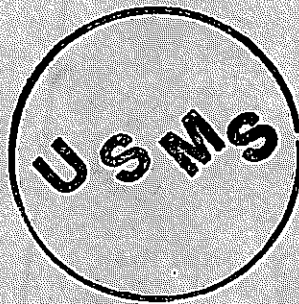
3. Reasonable attorney fees and costs; and

4. Such other and further relief as this court deems just and proper.

Dated: 11/6/17

Michael Walker, Pro-Se
Sullivan Correctional Facility
325 Riverside Drive
P.O. Box 116
Fallsburg, New York 12733-0116

MICHEAL WALKER #17-A-3801
SULLIVAN CORRECTIONAL FACILITY
325 Riverside Drive
P.O. Box 116
Fallsburg, New York 12733-0116



FREE MATTER FOR THE BLIND
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TO: PRO-SE CLERK
EASTERN DISTRICT OF NEW YORK
UNITED STATES COURTHOUSE
225 CADMAN PLAZA EAST
BROOKLYN, NEW YORK 11201

